

NPO Setup — Mitsue Project (御杖村)

特定非営利活動法人 (tokutei hieiri katsudo hojin) — Nara Prefecture jurisdiction

Phase 1 — Founding preparation (~1-2 months)

☐ Decide on NPO activities category

Must fall within 1 of 20 approved 特定非営利活動 categories. Mitsue Project likely fits: 'まちづくり推進' (community development), '学術・文化・芸術・スポーツ振興', or '環境保全'. Can list multiple.

Article 2 NPO Law

☐ Recruit founding members (社員)

Minimum 10 members (社員) required. These are voting members — different from directors. Collect name, address, DOB for each.

10 members min

☐ Appoint board of directors (理事)

Minimum 3 理事 (directors). One becomes 代表理事 (representative director). Relatives cannot fill more than 1/3 of positions.

3 directors min · No family concentration

☐ Appoint auditor (監事)

At least 1 監事 required. Cannot be a director or employee. Must not be a relative of any director.

1 auditor min

☐ Decide on NPO name (名称)

Must include 特定非営利活動法人 in full in official name. Check for conflicts with existing NPOs in Nara Pref.

☐ Choose office address (主たる事務所)

Mitsue Elementary School address can be used if you have consent. Alternatively use a personal address or co-working space. Must be in Japan.

Office consent letter

Phase 2 — Drafting core documents (~1-2 months)

☐ Draft 定款 (teikan / articles of incorporation)

The most critical document. Must include: name, purpose, activities, address, membership rules, board structure, fiscal year, dissolution rules. Template available from Nara Pref.

定款 (required) · Nara Pref. template

☐ Draft 設立趣意書 (establishment purpose statement)

Free-form narrative explaining why the NPO is being established, background, and vision. This is where the Mitsue Project story goes — forest restoration, school repurposing, data center, community revival.

設立趣意書

☐ **Draft 事業計画書 (activity plan) — first year**

Concrete list of planned activities for the first fiscal year. Must match the 定款 categories. Include: forest restoration activities, school facility use, community events, etc.

事業計画書

☐ **Draft 収支予算書 (income/expense budget) — first year**

Budget showing expected revenues (membership fees, donations, grants, project income) and expenses. Must balance.

収支予算書

☐ **Prepare 役員名簿 (director/auditor list)**

List of all 理事 and 監事 with: full name, address, DOB, occupation. Certified copies of residence certificate (住民票) may be required per prefecture.

役員名簿・住民票 (each officer)

☐ **Prepare 社員名簿 (member list)**

List of all 10+ founding members with name and address.

社員名簿

Phase 3 — Founding assembly (創立総会) (1 day — formal meeting)

☐ **Hold 創立総会 (founding general assembly)**

All founding members meet formally. Must vote on and approve: 定款, first-year 事業計画書 and 収支予算書, election of all 理事 and 監事. Minutes must be recorded.

議事録 (minutes)

☐ **Draft 創立総会議事録 (assembly minutes)**

Formal minutes showing: date, attendees, items discussed, voting results (unanimous approval typically expected), signatures of chairperson and recorder.

創立総会議事録

☐ **Collect 就任承諾書 from each officer**

Written consent from each 理事 and 監事 accepting their appointment.

就任承諾書 (each)

Phase 4 — Application to Nara Prefecture (~4 months review period)

☐ **Prepare application package (認証申請)**

Submit to Nara Prefecture 県民文化部 (or similar window). Application must include all required documents below.

No application fee

☐ **Submit: 設立認証申請書**

The cover application form. Nara Pref. has its own format — download from their NPO support page.

設立認証申請書

☐ **Submit: 定款**

Finalized articles of incorporation (with amendments from 創立総会 if any).

定款

☐ **Submit: 役員名簿 + 就任承諾書 + 住民票**

Officer list, consent letters, and certified residence certificates for all 理事 and 監事.

役員書類

☐ **Submit: 社員名簿**

Full list of 10+ founding members.

社員名簿

☐ **Submit: 設立趣意書**

Narrative statement of purpose.

設立趣意書

☐ **Submit: 事業計画書 + 収支予算書**

First-year activity plan and budget.

事業計画

☐ **Submit: 創立総会議事録**

Certified copy of founding assembly minutes.

議事録

☐ **Public縦覧 period (縦覧)**

Prefecture displays your application publicly for 2 weeks. Citizens may submit opinions. Passive step — just wait.

☐ **Receive 認証書 (certification letter)**

If approved, Nara Pref. issues 認証書 within ~4 months. If rejected, you receive reasons and can re-apply.

認証書

Phase 5 — Registration & post-setup (~2–3 weeks after certification)

☐ **Register with Legal Affairs Bureau (法務局)**

After receiving 認証書, register at Nara District Legal Affairs Bureau (奈良地方法務局) or nearest branch. This makes the NPO a legal entity.

Registration fee ¥10,000-¥15,000 · 法人設立登記申請書

☐ **Submit 設立登記申請書 to 法務局**

Required: 認証書 (copy), 定款, 役員名簿, 就任承諾書, 代表理事 印鑑 (seal) registration, registry fee.

設立登記申請書

☐ **Obtain 登記事項証明書 (corporate registry)**

After registration, obtain certified copy of the corporate registry (like a corporate birth certificate).

Needed for bank accounts, contracts, grants.

¥600/copy

☐ **Register NPO seal (法人印)**

Register official 代表者印 (representative seal) at the 法務局. Purchase a formal NPO seal first.

法人印

☐ **Open NPO bank account**

Bring 登記事項証明書 + 定款 + 法人印 + ID of representative. Japan Post Bank (ゆうちょ) or regional bank.

Avoid online-only banks at first — they often can't handle NPO accounts.

登記事項証明書 · 定款

☐ **Register with tax office (税務署)**

File 法人設立届出書 at the local 税務署 within 2 months of registration. Also notify Nara Pref. tax office (県税事務所) and Mitsue village office.

法人設立届出書

☐ **Submit 事業報告書 annually to Nara Pref.**

Every year by end of June: activity report, financial statements, list of officers and members. This maintains 認証 status. Non-filing = potential revocation.

Annual obligation

☐ **Consider applying for 認定NPO status (認定・仮認定)**

After 1 year of operation, can apply for 認定NPO法人 status from NTA — donors get tax deductions, making fundraising much more effective. Especially relevant for Mitsue Project's international donor network.

After 1 year ops